Union and its Territory

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Introduction

Conditions for Reorganisation:

- Requires **prior recommendation of the President**.
- **President refers the Bill to the concerned State Legislature** for its **views**.
  - **State Legislature's opinion is not binding** on the President or Parliament.
- **No reference is needed for Union Territories**.

Notable Supreme Court Judgments:

◆ **Berubari Union Case (1960):**

Whether Indian territory can be ceded to a foreign country under Article 3.

- **Supreme Court verdict**: No — this **requires a constitutional amendment under Article 368**.

9th Constitutional Amendment Act (1960) was passed to cede Berubari to Pakistan.

◆ **1969 Supreme Court Ruling:**

- **Settlement of boundary dispute** via agreement with a foreign country **does not require constitutional amendment**.

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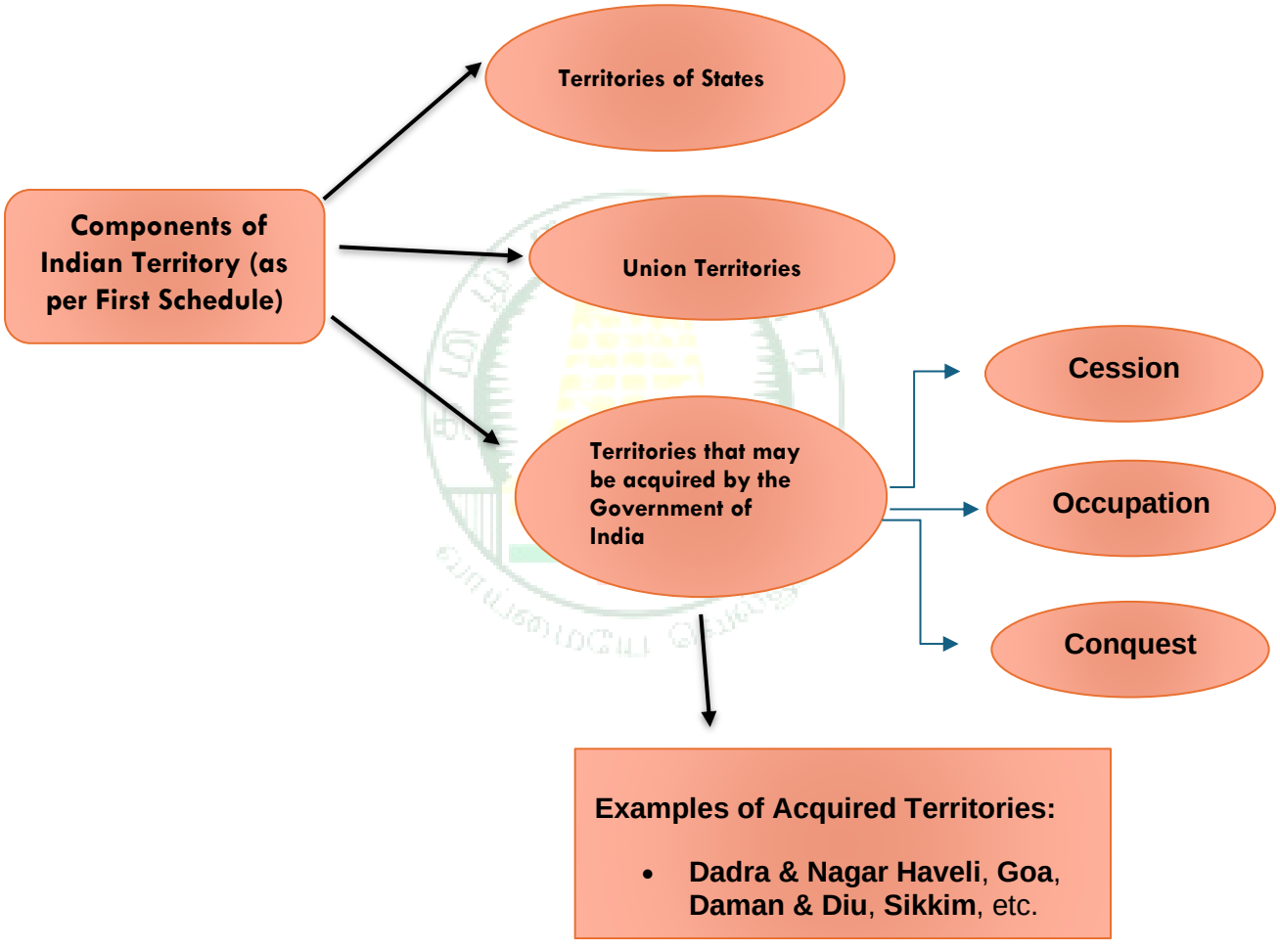
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As per **Dr. B.R. Ambedkar:**

- Indian federation is **not** the result of an agreement among states (unlike the USA).
- States have **no right to secede** – India is an **indestructible union.**

Article 1:

India, that is Bharat, shall be a **Union of States.**



Article 2: Admission or establishment of new states

. Article 2A-Sikkim to be associated with the Union (Repealed)

. Article 3: Formation of new states and alteration of areas, boundaries or names of existing states.

. Article 4: Laws made under Article 2 & 3 to provide for the amendment of the 1" and 4th Schedules and supplemental, incidental and consequential matters.

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Formation of Indian States & Union Territories

1960 – Formation of Maharashtra & Gujarat

Bombay State was bifurcated.

Maharashtra and **Gujarat** created.

Gujarat became the 15th state.

1961 – Goa, Daman & Diu

Acquired from Portuguese through **police action.**

Constituted as **Union Territories** via **12th Constitutional Amendment Act, 1962.**

1962 – Puducherry (Formerly Pondicherry)

Acquired from the **French** in 1954.

Governed as an **Acquired Territory** till 1962.

Became a **Union Territory** via **14th Constitutional Amendment Act, 1962.**

1963 – Nagaland

Formed by carving out **Naga Hills and Tuensang area** from Assam.

Created to address the **hostile Naga movement.**

Became the **16th state.**

1966 – Haryana, Chandigarh, Himachal Pradesh (UT)

Punjab State bifurcated:

Haryana (Hindi-speaking areas) formed – became **17th state.**

Chandigarh made a **Union Territory** (shared capital).

Hilly areas merged with **Himachal Pradesh (then UT).**

Based on **Shah Commission recommendations:**

Punjabi-speaking areas → Punjab

Hindi-speaking areas → Haryana

Hilly areas → Himachal Pradesh



1971 – Himachal Pradesh

Became a **full-fledged State** – the **18th state** of India.



Mizoram, Arunachal Pradesh and Goa (1987): These three new states were established, with Mizoram and Arunachal Pradesh previously being union territories.



2019 – Merger of Union Territories

Dadra & Nagar Haveli and **Daman & Diu** merged.

New UT formed: **Dadra and Nagar Haveli and Daman and Diu**

Capital: Daman

Chhattisgarh, Uttarakhand and Jharkhand (2000): These states were formed by dividing the territories of Madhya Pradesh, Uttar Pradesh, and Bihar respectively.

Telangana (2014): Formed from the territories of Andhra Pradesh, it became the 29th state of India.

Jammu & Kashmir and Ladakh (2019): The former state of Jammu and Kashmir was divided into two separate union territories.

India currently has 28 states and 8 union territories. (2025)

State Reorganisation Committees

Committee / Commission	Key Recommendations
Dhar Commission	◆ Rejected linguistic basis for reorganisation. ◆ Proposed creation of **Assam** & **North-East Frontier Tract** (later NEFA). ◆ Emphasised **geographical continuity, financial viability,** and **administrative convenience.** ◆ Focused on safeguarding **tribal rights.**
JVP Committee	◆ Opposed linguistic basis for states. ◆ Stressed **national unity, security,** and **economic prosperity.** ◆ Recommended **delaying** reorganisation.
Fazl Ali Commission *(State Reorganisation Commission)*	◆ Accepted **language as one** criterion. ◆ Rejected **"one language – one state"** idea. ◆ Considered **national unity, cultural homogeneity, economic and administrative factors.** ◆ Recommended formation of **16 states** and **3 union territories.** ◆ Led to **States Reorganisation Act, 1956** & **7th Constitutional Amendment.** ◆ Resulted in **14 states** and **6 union territories.**